IN THE HIGH COURT OF ORISSA AT CUTTACK
WP(C) No.34843 of 2026
CNR No. ODHC010831792026

Prakash Chandra Swain ..... ***Petitioner***

Represented by Adv. – Mr. Ajaya Kumar Moharana

-versus-

State Of Odisha & others ..... ***Opposite Parties***

Represented by Adv. – Mr. P.K. Ray, AGA

CORAM:
MR. JUSTICE SASHIKANTA MISHRA

ORDER
23.10.2026

Order No.

01. 1. This matter is taken up through hybrid mode.

2. The Petitioner has approached this Court with the following prayer.

> "*In the circumstances mentioned above, the petitioner therefore most humbly prayed that, this Hon'ble Court may graciously be pleased to admit the writ application. Issue notice to the opp. Parties to show cause, to issue Rule NISI, as to why the Opposite Parties shall not be restrained to take any illegal steps for eviction of the petitioner's small business shed namely Prakash Trading from the case land vide Plot No.590, Khata No.278 area AcO.020 dec. out of total area Acl.9652 dec. in Mouza-Aiginia Tahasil-Bhubaneswar, and not to demolish the shop of the*

petitioner, without any prior intimation or information or following due procedure of law.

And if the opp.parties are failed to show cause or show insufficient cause this Hon'ble Court further be pleased to make the said Rule NISI absolute and issuing an appropriate writ (s) as per law according to the fact and circumstances of the present case.

And/or to pass such other order (s) as this Hon'ble Court may deemed fit and proper in the interest of justice.

And for this Act of kindness, the petitioner as in duty bound shall ever pray."

3. In course of hearing, it is brought to the notice of this Court that highlighting his grievance, the Petitioner has approached the Commissioner, Bhubaneswar Municipal Corporation, while submitting a representation on 10.10.2026. No action has been taken on such representation as yet.

4. Having regard to the submissions as above, the Writ Application is disposed of with a direction to the Commissioner, Bhubaneswar Municipal Corporation to consider and dispose of the representation of the Petitioner after granting him an opportunity of hearing within ten days from today.

5. Till such time, no coercive action shall be taken against the Petitioner with respect to the suit land.

(Sashikanta Mishra)
Vacation Judge

Sipra

Signature Not Verified
Digitally Signed
Signed by: SIPRA MUDULI
Designation: Senior Stenographer
Reason: Authentication
Location: High Court of Orissa, Cuttack
Date: 23-Oct-2026 20:06:07